

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: August 10, 2026

Time: 2:00 PM

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1	Diagnostic Laboratory Science, Inc. v. Clinica Medica La Esperanza, Inc.	Before the Court is an unopposed motion for leave to file a cross-complaint filed by defendants Clinica Medical La Esperanza, Inc., Reynaldo A. Quinonez and Malvin Yan Do. For the reasons set forth below, the motion is GRANTED. A cross-complaint is compulsory if the cause of action "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in the complaint." (Code of Civ. Proc. § 426.10, subd. (c).) A party acting in good faith may apply to the court for leave to file a cross-complaint, at any time during the course of the action. (Code of Civ. Proc. § 426.50.) Leave to file compulsory cross-complaint is mandatory absent bad faith. (<i>Silver Organizations, Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-99.) Here, the Court finds the proposed cross-complaint contains causes of action related to the causes of action pleaded by Plaintiff in the complaint and is thus, compulsory. (Berry Decl., Ex. A.) The motion being unopposed, no bad faith has been shown. The motion is therefore GRANTED. Defendants are ordered to file the proposed cross-complaint forthwith. Counsel for Defendants shall give notice of this ruling.

2	United Financial Casualty Company v. Annet	Before the Court is a Motion to Pay Judgment in Installments filed by defendant Arianna Annet. As set forth herein, the motion is DENIED. In the instant motion, Ms. Annet seeks an order that she only have to pay \$75/month on the \$84,751.06 judgment entered against her. There is no authority cited for the relief requested. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635) Accordingly, the motion is DENIED. United Financial Casualty Company shall give notice.
3	Shurtleff v. Home Depot USA, Inc.	O/C
4	Self Storage Manager, Inc. v. Tenant, Inc.	Before the Court is a demurrer filed by defendants Tenant, Inc. and Mara Padres (Defendants) on the first amended complaint (FAC) of plaintiff Self Storage Manager, Inc. (Plaintiff). For the reasons set forth below, the demurrer is OVERRULED. <u>1st cause of action (violation of Penal Code § 502)</u>: The California Uniform Trade Secrets Act, Civil Code section 3426 et. seq. (CUTSA) preempts common law claims for misappropriation of trade secrets and statutory claims if they rely on the same facts as the misappropriation claim. (<i>K.C. Multimedia, Inc. v. Bank of America Tech. & Operations, Inc.</i> (2009) 171 Cal.App.4th 939, 954, 958, 961-962.) The first cause of action is based on unauthorized computer access itself and the FAC alleges independent damages unique to computer trespass, and thus does not arise out of the same nucleus of facts as the misappropriation claim. (FAC ¶¶ 15, 19, 20.) The Court finds this claim is not preempted by CUTSA. The demurrer is therefore OVERRULED. Counsel for Defendant shall provide notice of this ruling.
5	Pham v. General Motors, LLC	O/C
6	Jones v. Jaime	O/C
7	Nguyen v. Buffa	The demurrer by defendants Jack Buffa, Cindy Buffa and Karafaye Buffa as to the First Amended Complaint (FAC) filed by Toan Nguyen is SUSTAINED IN PART, AND OVERRULED IN PART, as set forth herein. Initially, the Court notes there is no proof of service attached to the Demurrer or Reply. California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. As to the merits, the role of a demurrer is "to test the legal sufficiency of a complaint." (<i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994, citations omitted.) A demurrer challenges

the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.)

1st Cause of Action - Intentional Infliction of Emotional Distress

"A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.'" (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.)

Here, plaintiff alleges defendants engaged in a campaign of harassment including assault, yelling profanity, using cars to block access to his property, trespassing on his property, vandalizing parts of plaintiff's construction project, and spraying a garden hose onto plaintiff and his newly installed stucco. (See, e.g., FAC ¶¶16-24, 37, 38, 48) Given the allegedly intentional and repeated attempts to harass and harm the plaintiff, for purposes of the demurrer stage, the FAC adequately states the Intentional Infliction of Emotional Distress cause of action.

Indeed, "while section 47(2) bars certain tort causes of action which are predicated on a judicial statement or publication itself, the section does not create an evidentiary privilege for such statements. Accordingly, when allegations of misconduct properly put an individual's intent at issue in a civil action, statements made during the course of a judicial proceeding may be used for evidentiary purposes in determining whether the individual acted with the requisite intent." *Oren Royal Oaks Venture v. Greenberg, Bernhard, Weiss & Karma, Inc.* (1986) 42 Cal.3d 1157, 1168. Accordingly, although not themselves forming a basis for liability, the allegations regarding repeated, unfounded claims made against Plaintiff may be considered in determining whether sufficient facts are alleged supporting the intent element of the first cause of action.

Therefore the demurrer as to the first cause of action is
OVERRULED.

2nd Cause of Action – Nuisance

The elements of a private nuisance are 1) plaintiffs owning, leasing, occupying, or controlling real property; 2) Defendants obstructing the free use of the property so as to interfere with the comfortable

		enjoyment of life or property; 3) an ordinary person would be unreasonably annoyed or disturbed by the acts of Defendants; 4) the seriousness of the harm outweighed the social utility; 5) Plaintiffs did not consent to the obstruction; 6) Plaintiff suffered harm by Defendants’ actions; and 7) Defendants’ actions were a substantial factor in causing Plaintiffs’ harm. (<i>Dep’t of Fish & Game v. Superior Ct.</i> (2011) 197 Cal. App. 4th 1323, 1352.) Further, “[a]nything which is injurious to health, including, but not limited to. . . an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property. . . is a nuisance.” (Civ. Code § 3479.) Here, plaintiff alleges the three defendants substantially and unreasonably interfered with the use of the enjoyment of his property, including using their cars to block access to the property and the battery, trespass, and vandalism alleged. The Court does not find the allegations uncertain. As such, plaintiff has pled sufficient facts to state the Nuisance cause of action. Therefore the demurrer as to the second cause of action is OVERRULED. <u>Lack of specificity as to actions of Jack Buffa</u> As noted by Defendants in their reply, the allegations regarding Jack Buffa are a bit thin—alleging J. Buffa joined K. Buffa in trespassing on the property. The single act of trespassing would not by itself support the claims against Jack Buffa, and the FAC fails to allege a civil conspiracy between the Defendants. The demurrer as to Jack Buffa is SUSTAINED. Plaintiff is granted 20 days leave to amend. Defendants shall give notice.
8	Catanzarite v. City of Newport Beach	Before the Court is a demurrer of respondents City of Newport Beach and City Council of the City of Newport Beach (collectively, City) directed to the verified petition for writ of mandate and for writ of administrative mandamus (Petition) filed by petitioners Kenneth J. Catanzarite and Kim E. Catanzarite (collectively, Petitioners). For the reasons set forth below, the demurrer is OVERRULED. City is to file an answer to the Petition within 20 days. The City argues the Petition is moot because the limited term permit (LTP) at issue in this lawsuit was voluntarily surrendered by real parties in interest FPV II Partnership, Lawry’s Restaurants, Inc., and Ryan O. Wilson (collectively, Real Parties) and the City accepted that surrender effective December 10, 2025. “A case is considered moot when the question addressed was at one time a live issue in the case but has been deprived of life because of events occurring after the judicial process was initiated. The pivotal question in determining if a case is moot is therefore whether the court can grant the plaintiff any effectual relief.” (<i>Cohen v. Superior Court</i> (2024) 102 Cal.App.5th 706, 714 [internal citations and

quotations omitted]; see also, *Lincoln Place Tenants Assn. v. City of Los Angeles* (2007) 155 Cal.App.4th 425, 454 “[A] case becomes moot when a court ruling can have no practical effect or cannot provide the parties with effective relief.”].)

Although it is undisputed the LTP has been surrendered, there is nothing presented showing that Resolution No. 2025-18, by which the City approved Real Parties’ LTP application, has been rescinded or that the findings therein no longer have any force or effect. The Petition here seeks issuance of a writ of mandate directing the City to not only vacate the decision granting Real Parties the LTP, but to vacate and set aside Resolution No. 2025-18. (See Petition, Prayer for Relief, ¶¶ 1, 3.) As Petitioners point out, Resolution No. 2025-18 sets forth numerous findings and determinations regarding the outdoor dining area of the Five Crowns restaurant and its impacts on surrounding neighborhoods. (See Petition, Ex. 6.) The City has not shown how surrender of the LTP renders these findings and determinations a nullity or that these findings cannot be used in later proceedings involving the same parties and properties at issue. The City simply states summarily that the findings set forth in Resolution 2025-18 are irrelevant now that the LTP has been surrendered. But no authority or evidence is offered to support this contention.

The City also fails to sufficiently show how considering the merits of the Petition as it relates to Resolution No. 2025-18 is tantamount to issuing an advisory opinion on a different administrative proceeding. The Court would not be making a ruling or findings concerning any separate administrative proceeding. The Court would be issuing an order as to whether the City acted within its discretion in adopting Resolution No. 2025-18.

The authorities cited by the City in the reply are distinguishable and do not support the conclusion these proceedings are moot. (See *Sturgell v. Department of Fish & Wildlife* (2019) 43 Cal.App.5th 35; *Goldman v. Santa Barbara County* (1962) 203 Cal.App.2d 454.) The City has cited no authority addressing the issue of whether surrender of a land use permit renders a mandamus proceeding directed to both the permit and a related resolution moot.

The City has not shown that all of the relief sought in the Petition is mooted by the surrender of the LTP as the City failed to show that vacatur of Resolution No. 2025-18 would have no legal or practical effect. Even if some of the relief sought is no longer available, this would not support sustaining the demurrer. “Ordinarily, a general demurrer does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled.” (*Elder v. Pacific Bell Telephone Co.* (2012) 205 Cal.App.4th 841, 856 fn 14.)

Moreover, even if the surrender of the LTP rendered this case moot, the Court has discretion to consider the merits because the parties’ dispute over Five Crowns’ outdoor operations is likely to recur. When there may be a recurrence of the controversy between the parties, the court may exercise its discretion to decide the merits.

		(<i>Environmental Charter High School v. Centinela Valley Union High School Dist.</i> (2004) 122 Cal.App.4th 139, 144 [discussing three discretionary exceptions to the rules regarding mootness].) The City concedes in its reply that Real Parties have sought a conditional use permit for their property which application is currently pending. (See Reply at p. 4:8-13.) As such, the controversy between the parties concerning the subject property and its outdoor operations is likely to recur. Based on the foregoing, the demurrer is OVERRULED. City's request for judicial notice is GRANTED. (Evid. Code § 452(d).) Counsel for Petitioners shall give notice.
9	City of Garden Grove v. Webber	Before the Court are the Defendant's Motion to Terminate Receivership, Receiver's Motion for Final Sale Approval and Hearing on Defendant's Objections to Receiver's Monthly Accounting. Hopefully, the parties have worked this all out by now. So, no tentative at this point.
10	Doe v. Shell USA, Inc.	O/C
11	Desmond v. Hyundai Motor America	Before the Court are the Demurrer and Motion to Strike filed on 5/26/26 by Defendant Hyundai Motor America ("Defendant") as to the Complaint filed on 10/14/25 by Plaintiff Alicia R. Desmond ("Plaintiff"). Both are unopposed. The Demurrer: The Demurrer is directed solely to the Fifth Cause of Action in the Complaint, which asserts a claim for "Fraudulent Inducement – Concealment." The Complaint fails to adequately state facts to support a fraudulent concealment claim. To plead fraudulent concealment, the plaintiff must plead with specificity: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) defendant intended to defraud plaintiff by intentionally concealing or suppressing the fact; (4) plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40; <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 843.) Every element must be alleged in full, factually and specifically. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Here, Plaintiff has failed to identify the seller of the vehicle and thus has not pled facts to show a buyer-seller relationship between the parties. (See <i>Dhital v. Nissan North America, Inc.</i>, supra, 84 Cal.App.5th at 844.) The claim also lacks adequate specificity. Plaintiff has failed to identify the specific defect(s) in her vehicle, how they were discovered, whether and when repairs were sought, and what an authorized dealer did in response. Plaintiff has also

	failed to state what specifically was known to Defendant but not disclosed. Generic claims of defects, without more, will not suffice to state the claim, as “[t]he very existence of a warranty presupposes that some defects may occur.” (<i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345.) The Demurrer is thus SUSTAINED. However, Defendant’s argument as to the economic loss rule fails here. (<i>Dhital v. Nissan North America, Inc.</i>, supra, 84 Cal.App.5th at 843 [fraudulent inducement by concealment claims are not barred by the ELR].) The burden is on the plaintiff to show that there is a reasonable possibility that she can amend the pleading in a manner which will cure the defect. (<i>Goodman v. Kennedy</i> (1976) 18 Cal.3d 335, 349.) Plaintiff has not met that burden here. To the contrary, as no Opposition was filed, Plaintiff appears to have abandoned this claim. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The Demurrer is therefore sustained without leave to amend, but without prejudice to a future motion for leave to amend if Plaintiff identifies facts sufficient to support the cause of action. <u>The Motion to Strike</u>: The Motion to Strike is GRANTED. In light of the ruling above, there is no cause of action to support Plaintiff’s punitive damages claim. Plaintiff has also failed to plead facts sufficient to claim civil penalties, as she has not alleged compliance with the requirements of C.C.P. § 871.24. In the absence of any Opposition, Plaintiff has failed to show that she can amend to cure that defect. Defendant’s Request for Judicial Notice (ROA 53) is GRANTED under Ev. Code §452(c). Counsel for Defendant is to give notice of these rulings.
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